

25STCV13409 25STCV13409

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV13409 Hearing Date: September 2, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 2, 2026 TRIAL DATE: November 22, 2027

CASE: Angel Flores v. University of Southern California

CASE NO.: 25STCV13409

PLAINTIFF'S

MOTIONS TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, DEMAND FOR IDENTIFICATION AND PRODUCTION OF DOCUMENTS, AND REQUEST FOR ADMISSIONS

MOVING PARTY: Plaintiff

Angel Flores

RESPONDING PARTY: Defendant University of Southern California

I. INTRODUCTION

This is a premises liability action. On June 17, 2026, Plaintiff, Angel Flores, filed these motions to compel Defendant, University of Southern California, to provide further responses to Plaintiff's first set of Form Interrogatories, Special Interrogatories, Demand for Identification and Production of Documents, and Request for Admissions. Plaintiff requests sanctions against Defendant and its counsel of record.

On August 18, 2026, Defendant filed oppositions.

At the time of this writing, no replies had been filed.

III. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, parties may move for a further response to interrogatories, demand for inspection of documents, and requests for admissions where an answer to the discovery request is evasive or incomplete or where an objection is without merit or too general.⁠⁠⁠

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Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response.⁠ (Code Civ. Proc., §§ 2030.300(c); 2031.310(c); 2033.290(c).)⁠⁠⁠

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Finally, California Rules of Court, rule 3.1345(a)(3) requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses.⁠

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Monetary Sanctions⁠⁠⁠

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or

limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.300(d); 2031.310(h); 2033.290(d).)

C. Application

1. Meet and Confer

Defendant argues the motion should be denied because Plaintiff did not satisfy the meet and confer requirement. The argument lacks merit. A motion to compel further responses to discovery must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., §§ 2030.300(b)(1); 2031.310(b)(2); 2033.290(b)(1).) Section 2016.040 provides, in part, “(a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

Here, a review of Plaintiff’s counsel’s declaration shows that Plaintiff sent an email in an effort to informally resolve these issues. In response, Defense counsel stated, “Your email also seeks responses without objections. We have not waived objections. We timely served objections on the deadline. As such, further responses will continue

to assert the objections we previously asserted, not new ones.” (Marchiondo Decl., Ex. 3.) Defense counsel’s stated refusal that it

would continue to assert objections, even after Plaintiff granted several extensions for Defendant to provide substantive responses, demonstrates any further attempts to meet and confer would be futile. The motions are properly before the court.

2. Whether the Motions Are Moot

Defendant

argues the motions will be moot because Defendant will serve verified, substantive responses by August 25, 2026. The argument is not well taken. The service of supplemental responses during

the pendency of a motion to compel further does not moot the motion. (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 [“Moreover, to adopt the County’s interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation.”].) The court proceeds to consider the merits of the motions.

3. Form Interrogatories (FROG)

Plaintiff

seeks Defendant’s further responses to FROG Nos. 1.1, 3.1-3.7, 4.1-4.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1.

Defendant asserted frivolous objection-only responses to the FROGs. These interrogatories have been approved for use by the Judicial Council. Further responses are warranted.

4. Special Interrogatories (SROG)

Plaintiff seeks Defendant’s further responses to SROG Nos. 1-140. Defendant asserted frivolous objection-only responses to the SROGs. The court also notes that admissibility is not the standard in determining whether information is discoverable. “For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement

Admissibility is not the test and information unless privileged, is discoverable if it might reasonably lead to admissible evidence. These rules are applied liberally in favor of discovery, and (contrary to popular belief), fishing expeditions are permissible in some cases.” Garamendi v. Golden Eagle Ins. Co (2004) 116 Cal.App.4th 694, 712, fn 8.) Further responses are warranted.

5. Demand for
Identification and Production of Documents (RFP)

Plaintiff seeks Defendant's further responses to RFP Nos. 1-64. Defendant asserted frivolous objection-only responses to the RFPs. To the extent a privilege exists, Defendant must provide a privilege log. Further verified responses are warranted.

6. Request for
Admissions (RFA)

Plaintiff seeks Defendant's further responses to RFA Nos. 1-58. In a running theme, Defendant asserted frivolous objection-only responses to the RFAs. Further verified responses are warranted.

7. Monetary Sanctions

Given the rulings,
and the Defendant's assertion of meritless objections despite being granted six extensions to provide discovery response, the court finds sanctions are warranted. Accordingly, sanctions are imposed against Defendant and its counsel of record in the sum of \$4,640.

IV. CONCLUSIONS

The motions to compel further are GRANTED. Defendant is ordered to provide further, verified responses within 30 days of this order. Defendant and its counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$4,640 within 30 days of this order.

Defendant is ordered to give notice, unless waived.

Dated: September 2, 2026

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ۛ Brock T. Hammond

ۛ Judge of the Superior Courtۛ